STANDARD OPERATING PROCEDURE			P-3920	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **03/19/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 60-6196 THROUGH 60-6211.07			
SUBJECT DRIVING UNDER THE INFLUENCE OF DRUGS INVESTIGATIONS AND DRUG RECOGNITION EXPERTS	CROSS-REFERENCE P-3900 DRIVING UNDER THE INFLUENCE INVESTIGATIONS			

I. Purpose:

The purpose of this policy is to establish procedures for conducting driving under the influence (DUI) of drugs investigations and for utilizing drug recognition experts (DREs).

II. Policy:

Individuals operating a motor vehicle while under the influence of drugs present a significant hazard to the public. The Sarpy County Sheriff's Office shall make a vigorous effort to detect impaired drivers and enforce the law as intended by the Legislature. Deputies shall stop any driver when there is probable cause to believe he or she is operating a motor vehicle while impaired from drugs other than alcohol and, with the assistance of a drug recognition expert, shall arrest when probable cause exists. Drug recognition experts may also be used in other circumstances to determine if individuals are under the influence of drugs other than alcohol.

III. Definitions:

A. DRUG RECOGNITION EXPERT (DRE): A law enforcement officer who has successfully completed an approved curriculum titled the Drug Evaluation and Classification Program as outlined by the Nebraska Office of Highway Safety. A DRE is qualified to conduct a standardized and systematic evaluation of an individual to determine:

1. If the subject exhibits signs of intoxication;

2. If those signs are caused by a drug or by some other physical or psychological impairment;

3. If the subject is intoxicated by the introduction of a drug into his or her system; and

4. The broad category of drugs which are likely to have caused the impairment.

B. **DRUG:** As defined by the Drug Evaluation and Classification Program, any substance which, when taken into the human body, can impair the ability of the person to operate a motor vehicle safely.

IV. Procedure:

A. Driving Under the Influence of Drugs-Deputy Responsibilities:

1. Deputies shall follow the DUI investigation procedures (see P-3900 DUI Investigations) for those drivers suspected of drug impairment.

2. After completing field sobriety testing, the deputy shall administer a preliminary breath test.

   a) If the preliminary breath test indicates a blood alcohol level in excess of .08, the deputy shall complete the investigation for driving under the influence of alcohol. Even if the deputy suspects drug impairment as well, the alcohol impairment shall be enough for prosecution.

   b) If the preliminary breath test (PBT) indicates a blood alcohol level under .08 or the subject refuses to submit to a PBT and the arresting deputy has probable cause to believe that the subject is impaired by drugs, the deputy shall contact Communications and request a drug recognition expert.

3. Communications shall attempt to locate an on-duty DRE in the County first, and, if none are available, Communications will page a Law Enforcement Officer certified as a DRE. If a drug recognition expert is available, the deputy shall place the suspect in handcuffs and advise the suspect that he or she is being detained for further testing. The deputy shall transport the individual to the Sarpy County Jail to meet with the DRE.

   a) If no DRE is available, the deputy shall contact his or her on-duty supervisor for direction.

4. Upon arrival at the Jail, the arresting deputy shall complete all paper work as described in P-3900, with the exception of the Sworn Report, Notice of Revocation and Temporary License form (there is no administrative license revocation for driving under the influence of drugs), and order the subject to submit to a chemical test of his or her urine. If the subject refuses, the deputy shall advise him or her that refusal to submit to such test is a separate crime

for which the person may be charged. If the subject continues to refuse, the suspect shall be charged with refusal under 60-6197.

a) The arresting deputy may have the subject submit to the urine test prior to the arrival of the DRE. The arresting deputy is ultimately responsible for the urine test and should complete the following:

(1) The subject should be thoroughly searched and then escorted to an unoccupied holding cell.

(2) The subject should rinse his or her hands with water only.

(3) The arresting deputy should observe the subject producing the urine sample into the sterile sample cup.

(a) If the arresting deputy is not of the same sex as the subject, the arresting deputy shall request the assistance of a corrections officer of the same sex. The chain of custody shall be properly documented.

(4) The arresting deputy shall take custody of the urine sample and place it into the evidence refrigerator and complete the ProPhoenix property entry requesting the sample be tested for drugs. The deputy should list the specific drug suspected, if known.

5. Upon arrival, the DRE will conduct a preliminary examination of the subject to determine if signs of intoxication exist which would justify an examination. If the signs are present, the DRE shall conduct a standardized evaluation.

a) The DRE shall complete a Drug Influence Evaluation form including the report number assigned to the DUI arrest.

6. The arresting officer shall complete all reports and forms as described in P-3900 with the exception of the Sworn Report, Notice of Revocation and Temporary License form. The suspect's driver's license is NOT impounded. There is no administrative license revocation for driving under the influence of drugs. The arresting deputy shall note in his or her report that a Drug Influence Evaluation was completed and the name of the DRE.

B. Suspected Drug Impairment-DRE Deputy Responsibilities:

1. A supervisor may request a DRE deputy respond to conduct a drug influence evaluation in cases that do not involve driving offenses.

2. A drug influence evaluation may be beneficial in drug possession cases to establish an affirmative link or at the scene of an accident not involving motor vehicles (e.g. job related injury).

3. The supervisor shall provide the DRE with the information regarding the requested evaluation and due to the specialized training received by each DRE, response to the call shall be at the discretion of the DRE. If the DRE does not believe he or she would be able to conduct a proper drug influence evaluation, he or she shall advise the supervisor.